

CHELSEA PARTNERS I, LLC,
A LIMITED LIABILITY COMPANY

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**AFFIDAVIT IN OPPOSITION TO
RESPONDENT'S MOTION AND IN
SUPPORT OF PETITIONER'S MOTION**

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judgment which was denied by the Hon. Frances A. Ortiz dated January 21, 2020.

5. This is the Respondent's second attempt to obtain summary judgment. However, the Respondent offers nothing new to this Court to dissuade this Court from denying Respondent's motion for summary judgment.

6. The Respondent fails to demonstrate to this Court any new evidence to this Court to obtain the relief requested.

7. In contrast to the Respondent's motion, the Petitioner now cross-moves for summary judgment for the reason that the Petitioner has presented new evidence subsequent to the prior motion, which shows in addition to the fact that the certificate of occupancy only provides for commercial use, (see Doc. No. 27) that the Petitioner has sought to amend the use clause and the building department has not permitted such a change. (See Doc. No. 21) In addition, the Petitioner has an affidavit from an expert architect, attesting to the fact that the Petitioner can not change the use clause (Doc. No. 26). Since the subject premises pursuant to the certificate of occupancy only provides for commercial use, the Petitioner should be entitled to summary judgment in its favor.

BACKGROUND

8. The Court's attention is respectfully directed to the fact that the instant proceeding was commenced by service of a Notice of Petition and Petition dated December 14, 2017. (Doc. No. 44)

9. The Petitioner, Chelsea Partners I, LLC, A Limited Liability Company (hereinafter referred to as the "Petitioner"), is authorized to institute and maintain the within proceeding and is the owner of the building known as and located at 249 West 26th Street, New York, New York 10001, and is the landlord of the Respondent-Tenant, Marcelo Romano. A copy of the Deed filed on ACRIS is annexed hereto as Exhibit A.

10. The subject premises are described as follows: all rooms in Apartment 1A in the building known as 249 West 26th Street, New York, New York 10001 (hereinafter referred to as the "subject premises").

11. Said premises are situated within the territorial jurisdiction of the Civil Court of the City of New York, County of New York.

12. The Petitioner is the landlord and owner of the subject building.

13. The Respondent-Tenant, Marcelo Romano, is the tenant of the subject premises, who occupies the subject premises on a month-to-month basis after the expiration of his lease. See Doc. No. 52.

14. "John Doe" is a fictitious appellation intended to describe any other occupant of the subject premises other than the named Respondent, Marcelo Romano.

15. The term for which the premises were rented by the Respondent-Tenant expired on November 30, 2017.

16. All of the Respondents continue in possession of the premises without permission of the Petitioner after the expiration of said term.

17. The Respondent-Tenant's term expired for the reasons set forth in the Notice to Cure, dated September 20, 2017, and the Notice of Termination, dated October 17, 2017, copies of which, together with the affidavits of service for said notices, are annexed to the petition. (See Doc. No. 44)

18. The Petitioner lacks written information or knowledge of any address where the Respondent-Tenant resides, is employed, has a place of business or has a principal office in New York State other than the address of the premises sought to be recovered.

19. At least thirty (30) days before the expiration of said term, the Respondent-Tenant was served in the manner provided for by law with a notice in writing, a copy of which together with proof of service thereof is annexed to and made a part of the petition, (Doc. No. 44) that the Petitioner elected to terminate said tenancy and that unless the Respondent-Tenant removed from said premises on the day on which the term expired the Petitioner would commence a summary proceeding under the statute to remove said Respondent-Tenant therefrom.

20. The subject premises are located in a building which is a multiple dwelling and pursuant to the Housing Maintenance Code, Article 27-2097 through 27-2109, there is a currently effective registration statement on file with the Office of Code Enforcement in which the Owner has designated Elizabeth Novotny as the managing agent, a natural person over 21 years of age, to be in control of and responsible for the maintenance and operation of the dwelling. The agent's address is 381 Park Avenue South, Suite 1420, New York, New York 10016. The Multiple Dwelling Registration Number assigned by the City of New York is 105456. See Exhibit B, the Website for the Multiple Dwelling Registration and Doc. No. 49.

21. Pursuant to the petition (Doc. No. 44) it provides that the Respondent-Tenant owes to the Petitioner the sum of \$43,816.68, representing the balance of rent for June, 2016, in the amount of \$1,316.68, plus rent, at the rate of \$2,500.00 per month, from July 1, 2016 through and including November 30, 2017, which has not been paid to the Petitioner.

22. The Respondent-Tenant has paid no use and occupation for the subject premises subsequent to November 30, 2017.

23. The reasonable value for use and occupation for the subject premises subsequent to November 30, 2017 is in an amount to be determined by the Court, but estimated to be at least \$2,800.00 per month.

24. The Court's attention is respectfully directed to the gravamen of the underlying proceeding which seeks to recover possession of the subject premises based upon the claim that the Respondent is using and occupying the subject premises in violation of the Certificate of Occupancy. (See Doc. No. 50) The Certificate of Occupancy of the subject premises provides that the subject apartment may be used solely for commercial purposes as a store and is not approved for residential living purposes.

25. The Court's attention is respectfully directed to the fact that the affidavit by the Respondent in support of respondent's motion acknowledges that the Respondent is using and occupying the subject premises as a residence. The Respondent was served with a Notice to Cure stating that the Respondent was violating the Certificate of Occupancy. The Respondent failed to cure the violation of the Certificate of Occupancy in accordance with the Notice to Cured. The Petitioner then served upon the Respondent a Notice of Termination as a result of the Respondent failing to comply with the Notice to Cure dated September 25, 2017. (See Doc. No. 44)

26. The instant proceeding is a summary holdover proceeding based upon the grounds that the Respondent is using and occupying the subject premises for living purposes in violation of the Certificate of Occupancy.

27. No use and occupancy had been paid and the Respondent continues to reside in the subject premises in violation of the Certificate of Occupancy.

28. I am advised by my attorneys that the well settled law provides that since it is undisputed that the Certificate of Occupancy provides that the subject premises are to be used for residential purposes, and that the Petitioner is subject to civil and criminal penalties for the use of the subject premises in violation of the Certificate of Occupancy, the Respondent is not entitled to use and occupy the subject premises in violation of the Certificate of Occupancy.

29. Moreover, I am advised by my attorneys that pursuant to Sec. 27-2139 of the New York City Administrative Code (hereinafter referred to as the "Administrative Code"), it provides that any dwelling or part thereof, which, because

" ... Any other violation of this code or other applicable law, constitutes a danger to the life, health or safety of the Occupants shall be deemed to be unfit for human habitation."

30. If in fact the Respondent was entitled to utilize the premises residentially, the Certificate of Occupancy would have provided so.

31. The Petitioner should not have to subject itself to civil and criminal penalties and wait for the New York City Department of Buildings to issue a violation for the use in violation of the Certificate of Occupancy.

32. Moreover, in the case at bar, there was a substantial rehabilitation of the subject premises. Thereafter, the property received J51 benefits. However the J51 benefits expired prior to the Respondent using and occupying the subject premises.

33. Thus, since there was a substantial rehabilitation after 1974, and the J51 expired, at the very least, the subject apartment would not be subject to any rent regulation and would not be rent stabilized.

34. The predecessor owner obtained a new certificate of occupancy as a result of a substantial rehabilitation and the J51 expired prior to the Respondent's occupancy. See Doc. No. 37.

35. The Court's attention is respectfully directed to the gravamen of the underlying proceeding which seeks to recover possession of the subject premises based upon the claim that the Respondent is using and occupying the subject premises in violation of the Certificate of Occupancy. The Certificate of Occupancy of the subject premises provides that the subject apartment may be used solely for commercial purposes and is not approved for residential living purposes. Doc. No. 36.

36. The Respondent was served with a Notice to Cure for the reason that the Respondent is using and occupying the subject premises in violation of the Certificate of Occupancy. The Petitioner then served a Notice of Termination for the reason that the Respondent failed to comply with the Notice to Cure and the violations continued to exist past the time period within which the Respondent had to cure the conditions.

37. The Respondent acknowledges that the Respondent is using the subject premises residentially while the Certificate of Occupancy does not provide for residential use.

38. Additionally, I am further advised that to allow the unsafe and hazardous conditions to continue to exist, i.e., the use of the subject premises residentially rather than commercially, could be a safety hazard, not only to the Respondent occupying the subject premises but also for firefighters and other public servants as well as the residential units neighboring the subject premises. These risks are too substantial to countenance and are not in any way a condition that rent regulation was designed to encourage or sustain.

39. The Respondent has failed to demonstrate that the subject premises may be used for residential purposes.

40. There is no dispute that the building is an apartment building which has residential units but the subject premises i.e., Apartment 1A on the 1st floor is not zoned for residential use

41. Specifically, the Court's attention is respectfully directed to the Certificate of Occupancy (Doc. NO. 36) which shows that the 1st floor is for commercial purposes and the second floor to 5th floor is for apartments. The fact that the building houses residential units does not in any way eliminate the requirement for the subject premises to be used commercially.

42. In the case at bar, not only does the Certificate of Occupancy show that the 1st floor can only be used for commercial purposes, an application was made to the New York City Department of Buildings to convert the subject premises to residential use. See Doc. No. 33. Said application states "Convert existing art

studios (UG9) into class "A" Apartments on the first floor. Work to include general construction and plumbing work as per plans. Obtain new amended CO upon completion."

43. The Building Department then denied said application and the Department of Buildings wrote objections. See Doc. No. 21.

44. The Petitioner sought to amend the Certificate of Occupancy to provide for residential use and the Petitioner made an application to the New York City Department of Buildings to convert the commercial studio space on the 1st floor of the subject building to a Class A apartment.

45. As appears more fully in the Notice of Objections dated January 25, 2019 from the Department of Building, (Doc.No 21) the D.O.B. denied the Petitioner's application to convert the subject premises to residential use. Specifically the Notice of Objections states, in pertinent part, as follows:

"By converting the studio (r-no living on 1st floor to residential use is contrary with the zoning resolution of zoning District C6. No residential units can be created at the 1st floor for this building."

46. The Petitioner engaged the services of an architect to apply to the City of New York to convert the use and it was denied.

47. The Court's attention is respectfully directed to the fact that the Petitioner retained architects to convert the subject premises subsequent to the commencement of the instant proceeding (See Doc. No. 18).

48. The Petitioner then obtained from Rise Architecture an opinion as to whether the Petitioner could convert the subject premises to residential use subsequent to the objections raised by the D.O.B. (See Doc. No. 26). Rise Architecture , stated clearly that the first floor of the subject building is unable to allow for residential use per zoning code and other reasons, including failure to have two means of egress. (See Doc. No. 260).

RESPONDENT'S MOTION SHOULD BE IN ALL RESPECTS DENIED

49. First, the Court's attention is respectfully directed to the fact that the Respondent made a prior motion for summary judgment which was denied by Judge Ortiz. This second motion for summary judgment offers no new evidence or different theory of law to obtain the requested relief.

50. The sole claim by the Respondent is that the Respondent is a residential tenant and for the reason that the Respondent has been provided with residential leases the Respondent is entitled to summary judgment.

51. This is nothing more than was presented to the Hon. Francis Ortiz who denied Respondent's prior motion for summary judgment on January 21, 2020.

52. It is irrelevant that the respondent obtained a residential lease, or has been using the subject premises residentially. The certificate of occupancy precludes said use and thus the Respondent is not entitled to utilize the subject premises in violation of the certificate of occupancy.

53. It is of no moment that the premises were rented residentially as the certificate of occupancy prohibits such use. The Respondent has not even submitted a scintilla of documentary evidence to provide for Respondent's occupancy of the subject premises residentially.

54. In contrast thereto , the Petitioner has provided to this court a copy of the certificate of occupancy which provides solely for commercial use, applications to the Department of Building to amend the certificate of occupancy(Doc. No. 33), a denial of the application to amend the certificate of occupancy (Doc. No. 21) and an expert opinion from Rise Architecture (Doc. No. 26) that the subject premises cannot be converted to residential use for the reasons set forth in said opinion.

55. The fallacy of the Respondent's argument is that the Respondent can not be a rent stabilized tenant as the subject premises cannot even be rented out for residential purposes.

56. The Respondent has not paid any rent from at least 2015 and has thus remained in possession of the subject premises without paying any rent of any kind whatsoever to the Petitioner.

57. Most importantly, the Respondent has failed to demonstrate that the Respondent can remain in possession of the subject premises using the premises in violation of the certificate of occupancy.

58. In the case at bar, the Petitioner has proven and the Respondent has failed to refute that the Certificate of Occupancy is solely for commercial purposes. The Respondent

admittedly is not using the premises for commercial purposes. The Petitioner made an application to the New York City Department of Buildings to seek to amend the Certificate of Occupancy for residential use and said application was denied by the New York City Department of Buildings. (Doc. No. 21)

59. There is not even a scintilla of evidence provided to persuade this Court to believe that the Respondent is rent stabilized or has any right to remain in possession of the subject premises in violation of the certificate of occupancy.

60. Thus, the facts are not disputed that the Respondent is residing residentially in premises that must be used commercially only as set forth in the certificate of occupancy. Accordingly, Respondent's motion should be denied in its entirety.

PETITIONER'S MOTION SHOULD BE IN ALL RESPECTS GRANTED

61. In contrast to the Respondent, the Petitioner has provided supplemental evidence to this Court which beyond per adventure entitles the Petitioner to summary judgment.

62. In the case at bar, the Respondent has failed to come forward with even an iota of documentary evidence to demonstrate that the Petitioner is not entitled to summary judgment.

63. It is manifestly clear that the Petitioner has proven its prima facie case. It is conceded that CHELSEA PARTNERS I, LLC is the Landlord and Owner of the building known as 249 West 26th Street, New York, New York 10001 and that the subject premises are a multiple dwelling and there is currently effective

registration statement on file with the Office of Code Enforcement. A copy of the Deed filed on ACRIS is annexed hereto as Exhibit A and Respondent acknowledges the MDR registration in Doc. No 49. The Petitioner has provided a copy of the New York City Department of Buildings ruling that the subject premises may not be converted to residential use(Doc. No. 21) after the Petitioner made an application to amend the certificate of occupancy (doc. No. 33).

64. In contrast to the Respondent's motion, the Petitioner retained an architect who provided an opinion (Doc. No, 26) which clearly states in said opinion that the subject premises can not be converted to residential use for the reason, inter alia, it violates the zoning laws and most importantly there are not two means of egress which would prevent the subject premises from being converted to residential use.

65. The Respondent does not deny there is a Certificate of Occupancy which provides that the subject premises may only be uses commercially.

66. The affirmation of the Respondent's attorney fails to refute the fact that the Certificate of Occupancy provides for commercial use only for the subject premises.

67. There is not even an iota of evidence provided by Respondent which would constitute an issue of fact. It is conceded that the subject premises is a registered multiple dwelling. The fact that a building is multiple dwelling does not mean that the subject unit is to be used for residential purposes. If that was so, then any residential building which has commercial use, would

be deemed to be used residentially merely because there are residential apartments above.

68. It is manifestly clear that many buildings in the City of New York have mixed use, i.e., commercial use on the bottom floors of an apartment dwelling and residential uses above. There are some buildings that even have a portion of a building used as a hotel and a certain portions of the building for Class A multiple dwelling. That does not render the entire building to be used for the same use. The Respondent's argument that since the building has residential apartments, Respondent's apartment should be considered residential has no merit.

69. The Respondent claims that the building's has residential apartments. It is conceded by the Petitioner that floors 2 through 5 of the building are to be used residentially.

70. The Certificate of Occupancy, (Doc. No 27) clearly states the premises are to be used commercially and floors 2 through 5 are to be use residentially. That does not render the floor where the subject premises is located a residential apartment when it states specifically, "commercial studios no living." The Certificate of Occupancy specifically provides for no living in the Respondent's unit. Whether or not the Petitioner rented the subject apartment as residential, does not make it residential and the Petitioner has notified the Respondent that the Respondent cannot use and occupy the subject premises residentially. See the Notice to Cure and Notice of Termination annexed to the Notice of Petition and Petition (Doc. No. 44).

71. The Court's attention is respectfully directed to the affidavit of MARCELO ROMANO which claims in bald, conclusory allegation form that the Respondent should be able to utilize the subject premises residentially for the reason that he lives in the subject premises.

72. It is irrelevant whether or not the Petitioner previously or now has rented the subject premises residentially when the Respondent's occupancy is in violation of the Certificate of Occupancy. It is conceded by the Respondent that the Respondent is using and occupying the subject premises residentially.

73. It is irrelevant whether or not the Petitioner created the situation. Pursuant to the Certificate of Occupancy the Respondent is not permitted to use and occupy the subject premises residentially. Additionally, the Petitioner did in fact apply to the New York City Department of Buildings for a change in the use and it was denied. (Doc. No. 21).

74. The Petitioner has in fact sought to legalize the apartment and cannot do so based upon the denial of the New York City Department of Buildings to convert the subject unit to residential use and based upon the opinion of Rise Architecture (Doc. No. 26).

75. The Respondent fails to provide any evidence, for the reason that there is none, that the Petitioner can amend the Certificate of Occupancy to provide for residential use. There is not one scintilla of evidence or expert testimony submitted by Respondent to demonstrate that such a variance could be obtained.

76. It is manifestly clear based upon the determination of the New York City Department of Buildings (Doc. No. 21) that the subject premises may not be used residentially.

77. I am advised by my attorneys that the well settled law provides that the Respondent must present an issue of fact.

78. It is respectfully submitted that in the case at bar, the facts are undisputed with respect to the fact that the Certificate of Occupancy provides for commercial use for the subject premises.

79. The Respondent fails to set forth an facts that the subject premises could be converted to residential use for the reason that the Petitioner has demonstrated beyond per adventure that it cannot. A proper application was made to the New York City Department of Buildings and the New York City Department of Buildings will not permit a conversion to residential use.

80. It is manifestly clear that the Petitioner has proven its prima facie case and it is incumbent upon the Respondent to come forward with evidence to demonstrate that the Petitioner is not entitled to summary judgment.

81. It is respectfully submitted that the Respondent can not demonstrate any issue of fact. The Respondent enjoys remaining in possession of the subject premises paying no rent whatsoever for several years. It is the Respondent who seeks to reap the benefits of his wrongdoing by remaining in possession of premises which he claims he should not have to pay rent because he

is residing in premises that are residential and zoned commercially.

82. It defies belief that the Respondent wrongfully claims that he should not have to pay rent because the Certificate of Occupancy states that the subject premises are to be used commercially and then refuses to comply with the law and vacate since the premises cannot be used residentially and wrongfully seeks to remain in possession of the subject premises as long as possible without paying any rent.

83. It is respectfully submitted that the Court should not consider the egregious, ignominious and reprehensible actions of the Respondent when it is clear that Respondent's occupancy of the subject premises is in violation of the certificate of occupancy and subjects the Landlord to civil and criminal penalties as a result of the wrongful use by the Respondent.

84. It is respectfully submitted that this Court should be impelled to the ineluctable conclusion that summary judgment should be granted in favor of the Petitioner and against the Respondent for the reason that the subject premises cannot be utilized by the Respondent for residential purposes in violation of the Certificate of Occupancy. Thus, the Court should grant to the Petitioner the relief requested.

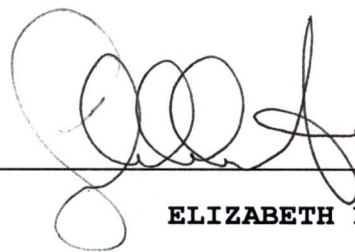
WHEREFORE, it is respectfully requested that the Respondent's motion be in all respects denied and the Petitioner's cross-motion be in all respect granted.

sworn to this 3rd day

October, 2022

Notary Public

of



ELIZABETH NOVOTNY

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